

The M.P. Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmachariyon Ki Bharti) Niyam, 1979

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State of Madhya Pradesh - Act

The M.P. Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmachariyon Ki Bharti) Niyam, 1979

MADHYA PRADESH

India

The M.P. Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmachariyon Ki Bharti) Niyam, 1979

Rule

THE-M-P-ASHASKIYA-SHIKSHAN-SANSTHA-ADHYAPAKON-TATHA-ANYA-KARMACHARIYON-KI-BHARTI-NIYAM-1979 of 1979

Published on 9 May 1979

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The M.P. Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmachariyon Ki Bharti) Niyam, 1979

Published vide Notification No. F-73-13-79-20-79, dated 9-5-1979, Madhya Pradesh Gazette (Extraordinary), dated 16-5-69, page 1981-1983

In exercise of the powers conferred by Section 10 of the Madhya Pradesh Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmachariyon Ke Vetano Ka Sandaya) Adhiniyam, 1978, (No. 20 of 1978), the State Government hereby makes the following rules, namely :-

1.

These rules may be called The Madhya Pradesh Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmachariyon Ki Bharti) Niyam, 1979.

2.

In these rules, unless the context otherwise requires,-

(a)

"Committee" means a selection committee constituted under Rule 12, 13 or 14 as the case may be;

(b)

"Form" means a form appended to these rules;

(c)

"Member of Scheduled Caste" means a member of any caste, race or tribe or part of or group within a caste, race or tribe specified as Scheduled Caste with respect to the State of Madhya Pradesh under Article 341 of the Constitution of India;

(d)

"Member of Scheduled Tribe" means a member of any tribe, tribal community or part of or group within a tribe or tribal community specified as such with respect to the State of Madhya Pradesh under Article 342 of the Constitution of India;

(e)

"Schedule" means the Schedule appended to these rules.

3.

Except Rules 4 and 5 these rules shall not apply to the institutions established and administered by minorities in pursuance of the provisions of clause (1) of Article 30 of the Constitution of India.

4.

Recruitment to a post of a teacher or other employee of an Institution shall be made by one of the following methods, namely :-

(a)

absorption of teachers or other employees of other institutions whose services have been terminated;

(b)

direct recruitment;

(c)

promotion; or

(d)

deputation of persons either from Government or Ayog or from any other organisation approved by the Government for the purpose :

Provided that the method of recruitment under clause (a) shall have priority over other methods of recruitment specified in clause (b), (c) or (d) as the case may be, if suitable retrenched persons who are otherwise qualified for the posts are available.

5.

(1)

Where the service of a teacher or an employee is terminated by an institution whether as a result of closure of the Institution or abolition of post or for any other reason whatsoever, such institution shall send information in respect thereof to the concerned Education Officer and Divisional Superintendent of Education in case of schools and to the Education Officer and Ayog in case of Colleges in Form 1.

(2)

The Education Officer, Divisional Superintendent of Education and the Ayog shall keep a record of the information received under sub-rule (1) in a register to be maintained in Form II.

6.

In order to be eligible for direct recruitment under these rules a candidate must satisfy the following conditions, namely :-

(a)

He must have attained the age specified in schedule.

(b)

He must possess the educational qualifications specified in the Schedule.

7.

[There shall be reserved posts for the persons belonging to the Scheduled Castes, Scheduled Tribes and Other Backward Classes at the stage of Direct recruitment in accordance with the provisions contained in the Madhya Pradesh (Lok Seva Anusuchit Jatiyon, Anusuchit Jan Jatiyon Aur Anya Pichhade Vargon Ke Liye Arakshan) Adhiniyam, 1994 (No. 21 of 1994)]

[Substituted by Notification No. F-73-8-85-XX-5, dated 6th March, 1999, published in Madhya Pradesh Rajpatra (Asadharan), dated 6-3-1999 page 246.]

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8.

(1)

Where an Institution desires to fill up any vacancy of a post of a teacher or other employees, it shall make a reference to that effect to the Education Officer, the Divisional Superintendent of Education or the Ayog as the case may be, alongwith a requisition in Form III.

(2)

On receipt of a reference under sub-rule (1), the Education Officer, the Divisional Superintendent of Education or the Ayog, as the case may be, shall furnish information to the Institution concerned in Form IV and such information shall relate to,-

(a)

Person having more length of continuous service in educational institution shall be given priority over the person having lesser service at his credit;

(b)

Person who was permanent in service shall have priority over a person who was temporary in service; or

(c)

Person whose services were terminated earlier shall have priority over a person whose services were terminated later.

(3)

If no suitable and otherwise qualified teacher or other employee is available, the Education Officer, the Divisional Superintendent of Education or Ayog, as the case may be, shall furnish a non-availability certificate to the Institution concerned.

9.

(1)

Whenever an Institution other than a Non-Government Educational Institution for higher education, desires to fill up any vacancy of a post of teacher or other employee, by direct recruitment, it shall cause a notice prepared for inviting applications therefore prepared stating therein the date by which an application for the post should be submitted to the Institution.

(2)

A copy of the notice prepared under sub-rule (1) shall be exhibited on the notice board of the Institution and a copy shall be sent to each of the offices of the Education Officer, District Education Officer and the Divisional Superintendent of Education for exhibiting it on the notice board of their respective offices.

(3)

An Institution may, if it so desires, get the notice prepared under sub-rule (1) published in newspaper or published in any other manner deemed proper.

(4)

The Institution shall also notify the vacancy to the local Employment Exchange.

10.

Applications for vacancies in non-Government Educational institution for higher education shall be invited in accordance with the provisions of the College Code framed under the Madhya Pradesh Vishwavidyalaya Adhiniyam, 1973 (No. 22 of 1973).

11.

An application made under Rule 9 or under Rule 10 shall be accompanied by satisfactory proof of payment of fee, if any.

12.

(1)

For every Institution other than a Secondary School and a non-Government Educational Institution for higher education,

there shall be a selection Committee consisting of,-

(a)
the Chairman- to be nominated by the Institution; and

(b)
members-

(i)
District Educational Officer or his nominee;

(ii)
one nominee of management;

(iii)
Head Master of the Institution;

(2)
[No business shall be transacted at a meeting of the Committee unless the Chairman and at least two members be present thereat.]

[Substituted by Notification No. F. 73-47-96-XX-5, dated 14-6-1996.]

13.

(1)
For every Secondary School there shall be a selection Committee consisting of,-

(a)
the Chairman- to be nominated by the Institution; and

(b)
members-

(i)
The Divisional Superintendent of Education or his nominee;

(ii)
one nominee of the management;

(iii)
One expert in the subject concerned to be nominated by the Divisional Superintendent of Education.

(2)
[No business shall be transacted at a meeting of the Committee, unless the Chairman and at least two members, one of whom shall be the expert in the subject concerned, are present.]

[Substituted by Notification No. F. 73-47-96-XX-5, dated 14-6-1996.]

14.

(1)
For every Non-Government Educational Institution for Higher education there shall be a selection Committee consisting of-

(i)
in the case of teaching post-

(a)
Kulpati or his nominee
Chairman

(b)
One nominee of the Management from amongst its members who are not teachers

Member

(c)
One expert in the subject concerned nominated by the Kulpati or his nominee

Member

(d)
One expert in the subject concerned nominated by the Madhya

Pradesh Uchcha Shiksha Anudan Ayog

Member

(e)

Principal of the Institution

Member Secretary

(ii)

in the case of Principal-

(a)

Kulpati or his nominee

Chairman

(b)

One nominee of the Management

Member

(c)

Co-ordinator/Dean/Director, College Development Council

Member

(d)

One nominee of the Madhya Pradesh Uchcha Shiksha Anudan Ayog

Member

(iii)

in the case of non-teaching post-

(a)

A nominee of the Kulpati

Chairman

(b)

One nominee of the Management

Member

(c)

One nominee of the Madhya Pradesh Uchcha Shiksha Anudan Ayog

Member

(d)

Principal of the Institution

Member Secretary

(2)

In the case of a Committee constituted under clause (i) of sub-rule (1) no business shall be transacted at a meeting of such committee unless the Chairman, one expert and two other members be present thereat and in the case of the Committee constituted under clause (ii) or (iii) of that sub-rule no business shall be transacted of a meeting of the Committee unless the Chairman and three members be present thereat.

15.

(1)

The Committee shall, having regard to the nature of duties of the post, select candidates by any one of the methods prescribed under the said rule and shall prepare a list of such candidate.

(2)

The candidates shall be selected on the basis of merit and the panel as well as the order of the names in the panel recommended by the selection committee should have the full concurrence of at least one expert.

(3)

The list prepared under sub-rule (1) shall contain the names of candidates five times the number of posts proposed to be filled up.

(4)

The list prepared under sub-rule (1) shall be submitted to the institution.

(5)

Appointment to any post of a teacher or other employee shall be made in order of merit from the list prepared under sub-rule (1).

Schedule

[See Rules 6-7]

Minimum Qualifications for Recruitment to Teaching Posts in The Institutions

A. For Lecturers in Colleges-

(a)

A doctors' degree or published research work of an equivalent high standard; and

(b)

(i)

A 2nd class Masters' Degree in the concerned subject with atleast 50 per cent marks (B in the seven point scale) or an equivalent degree of a foreign University; and

N.B. - (While taking into account the marks/grade, the marks/grade obtained in the internal assessment if any, shall be excluded).

(ii)

Atleast 50 per cent marks at the Bachelor's degree examination on the basis of which division is awarded at the degree level by the University; and

(iii)

Atleast 50 per cent marks at the Higher Secondary/Intermediate/Pre-University Examination, as the case may be.

Having regard to the need for developing inter-disciplinary programmes the degree in (a) above may be in relevant subject :

Provided that if the Selection Committee is of the view that the research work of a candidate as evident either from his thesis or from his published work is of very high standard it may relax any of the qualifications prescribed in (b) above :

Provided further that if a candidate possessing a Doctor's degree or equivalent research work is not available or is not considered suitable, a person possessing the following qualifications may be recruited-

(i)

A 2nd class Master's Degree in the concerned subject with atleast 50 per cent marks (B in the seven point scale), and

N.B. - (While taking into account the marks/grade, obtained in internal assessment, if any, shall be excluded).

(ii)

2 years experience of research work or practical experience in research laboratory, research organisation; and

(iii)

Atleast 50 per cent marks at the Bachelor's degree examination on the basis of which division is awarded at the degree level by the University; and

(iv)

Atleast 50 per cent marks at the Higher Secondary/Intermediate/Pre-University Examination as the case may be.

Or

(i)

A Master's Degree with first class or grade 'A' in a relevant subject; and

(ii)

Atleast 50 per cent marks at the Bachelor's Degree examination on the basis of which division is awarded by the University; and

(iii)

Atleast 50 per cent marks at the Higher Secondary/ Intermediate/Pre-University Examination as the case may be :

Provided further that in the case of categories (B) and (C), a candidate will have to obtain a Doctor's Degree/M. Phil. Degree or have to his credit published research work of equivalent standard within 5 years of his appointment failing which he will not earn future increments until he fulfils these requirements.

N.B. - The requirement regarding minimum percentage of marks shall be relaxed up to 50 per cent in case of Scheduled Castes/Scheduled Tribes candidates.

B. Minimum Qualifications prescribed for recruitment to the posts of non-Government College Professors-

(a)

A Doctor's degree or published work of an equivalent high standard; and

(b)

(i)

A 2nd class Masters' degree in the concerned subject with atleast 50 per cent marks (B in the seven point scale) or an equivalent degree of a foreign University; and

N.B. - (While taking into account the marks/grade, obtained in internal assessment, if any, shall be excluded).

(ii)

Atleast 50 per cent marks at the Bachelor's degree examination on the basis of which division is awarded at the degree level by the University; and

(iii)

Atleast 50 per cent marks at the Higher Secondary/Intermediate/Pre-University Examination, as the case may be; and

(c)

(i)

The experience of teaching of Post-Graduate classes shall be atleast 5 years; and

(ii)

Atleast three years experience of guiding research:

Provided that if the Selection Committee is of the view that the research work of a candidate as evident either from his thesis or from his published research work is of very high standard, it may relax any of the qualifications prescribed in (b) above.

N.B. - The requirement regarding minimum percentage of marks shall be relaxed up to 5 per cent in case of Scheduled Castes/Scheduled Tribes candidates.

C. For Principals-

Academic qualifications as prescribed above for Professors plus two years experience of working as Professor in an institution of higher learning affiliated to University.

Note. - For the purpose of recruitment as Principals, the Readers in university shall be treated on par with the Professors in Colleges.

Note. - Minimum age for the post of Lecturer and Professor should not be less than 21 years.

D. Minimum Qualifications for Non-Teaching Posts in Colleges

Post

Minimum age in years

Educational qualifications

Experience

(1)

(2)

(3)

(4)

1.

Head Clerk

21

Higher Secondary Examination Certificate of M. P. Board of Secondary Education or its equivalent.

10 years experience of clerical job.

2.

Accountant

21

Higher Secondary Examination Certificate of Madhya Pradesh Board of Secondary Education or its equivalent.

5 years experience of Accounts work

3.

Upper Division Clerk

18

Higher Secondary Examination Certificate of Madhya Pradesh

Board of Secondary Education or its equivalent.

3 years experience of clerical job.

4.

Lower Division Clerk

18

Higher Secondary Examination Certificate of M. P. Board of Secondary Education or its equivalent and has passed typing examination conducted by Madhya Pradesh Typing and Shorthand Parishad.

?

5.

Laboratory Assistant

18

Higher Secondary Examination with Science subject or equivalent.

?

6.

Laboratory Attendant

18

VIIth class pass.

?

7.

Librarian

21

Bachelor's degree and Post-Graduation in Library Science.

?

8.

Assistant Librarian

18

Higher Secondary Examination Certificate of Madhya Pradesh Board of Secondary Education or equivalent and Diploma/Certificate in Library Science.

?

9.

Physical Education Instructor

21

(a) For Higher Scale of pay Post Graduate, Degree/ Diploma or Post Graduate Diploma in Physical Education.

?

18

(b) For Lower Scale of pay existing Physical Education Instructors who do not possess qualifications as prescribed at (a) above.

?

10.

Peon

18

5th class pass.

?

11.

Other Class IV Employee

18

Suitable qualification relevant to the nature of work.

?

E. Minimum Qualifications for Posts in Schools

S.No.

Post

Minimum age in years

Educational qualifications

Experience

(1)

(2)

(3)

(4)

(5)

1. [

[Substituted by Notification No. F. 73-48-96-XX-5 dated 14th June, 1996.]

(a) Shiksha-karmi Grade III Trained

18

Higher Secondary Examination Certificate of Madhya Pradesh

Board of Secondary Education or its equivalent and B.T.C. or

B.Ed.

?

(b) Shiksha-karmi Grade III Untrained

18

Higher Secondary Examination Certificate of Madhya Pradesh

Board of Secondary Education or its equivalent.

?

Note.-The existing Assistant Teachers shall continue to hold their office as such till the date of vacation of their respective offices.]

2.

Teacher

21

Second Class Bachelor Degree from recognised University.

Preference for trained person.

?

3.

Headmaster

21

Second Class Bachelor Degree from recognised University.

Preference for trained person.

5 years teaching experience.

4.

Lecturer

21

Post Graduate Degree in the concerned subject from a recognised University. Preference for trained (M.Ed./B.Ed.).

?

5.

Principal

21

Educational Qualifications as for Lecturers.

10 years teaching experience.

6.

Music Teacher

21

2nd Class Graduate in Music or equivalent.

7.

Music Tabla Teacher

18

Certificate in Sangeet/Tabla Vadan from a recognised institution.

?

8.

Physical Instructor (Higher Pay Scale)

21

Graduate and degree in Physical Education or Diploma in Physical Education.

?

9.

Physical Instructor (Lower Pay Scale)

18

Higher Secondary Examination Certificate in Physical Education.

?

10.

Librarian (Higher Pay Scale)

21

Graduate Degree and Degree or Diploma in Library Science.

?

11.

Librarian (Lower Pay Scale)

18

Higher Secondary Examination Certificate and certificate in Library Science.

?

12.

Laboratory Assistant

18

Higher Secondary with Science subject or equivalent.

?

13.

Laboratory Attendant

18

VIIIth Class pass.

?

14.

Head Clerk

21

Higher Secondary Examination Certificate of M. P. Board of Secondary Education or equivalent.

10 years experience of clerical job.

15.

Accountant

21

Higher Secondary Examination Certificate of M. P. Board of Secondary Education or equivalent.

5 years experience of accounts work.

16.

Upper Division Clerk

18

Higher Secondary Examination Certificate of M. P. Board of Secondary Education or equivalent

3 years experience of clerical job.

17.

Lower Division Clerk

18

Higher Secondary Examination Certificate of M. P. Board of Secondary Education or equivalent and Typing Examination Certificate from M.P. Shorthand and Typing Parishad.

?

18.

Peon

18

Vth Class pass.

?

19.

Other Class IV employee

18

Suitable qualification in relation to the work.

?

Form-I

[See Rule 5 (1)]

Information under sub-rule (1) of Rule 5 of the Madhya Pradesh Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmacharyion Ki Bharti) Niyam, 1979 regarding Teachers or other employees whose Services have been terminated

S. No.

Name of Teacher/ Employee

Date of birth

Post held

From

To

Qualifications

Reasons for termination of service

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

Form-II

[See Rule 5(2)]

Name of post

Name of teacher/ employee

Date of birth

Post held

Qualification

Reasons for termination of service

From

To

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Form-III

[See Rule 8 (1)]

Requisition under sub-rule (1) of Rule 8 of the Madhya Pradesh Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmachariyon Ki Bharti) Niyam, 1979 to fill up Posts of Teachers/other Employees

Name of Post

Number of vacancies

Duration vacancies

Remarks

(1)

(2)

(3)

(4)

Form-IV

[See Rule 8 (2)]

Information under sub-rule (2) of Rule 8 of the Madhya Pradesh Ashaskiya Shikshan Sanstha (Adhyapakon Tatha Anya Karmachariyon Ki Bharti) Niyam, 1979

Name of Person

Name of the institution where from service
terminated

Date of birth

Period of service on

Date of termination of service

Qualification

Reasons for termination of service

Post

From

To

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

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